

SELL-SIDE ENGAGEMENT LETTER

This Sell-Side Engagement Letter (this “Agreement”) is entered into as of [DATE], 2026 (the “Effective Date”), by and between Sells Group Investments, LLC dba Sells Group Advisors, a Texas limited liability company (“Sells Group”), and [COMPANY LEGAL NAME], a [JURISDICTION] [ENTITY TYPE] (“Client” and, together with Sells Group, the “Parties” and each, a “Party”).

NOW, THEREFORE, in consideration of the mutual promises, undertakings and covenants contained herein, and for other good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the Parties agree as follows:

1. Purpose

Client hereby engages Sells Group as its exclusive financial advisor in connection with the potential sale of Client, or any other transaction involving Client (a “Transaction”). For purposes of this Agreement, a Transaction means any transaction or series of transactions pursuant to which, directly or indirectly, all or a substantial portion of the equity securities, capital stock, membership interests, partnership interests, assets (tangible or intangible), or business of Client are sold, transferred, exchanged, merged, consolidated, recapitalized, contributed, or otherwise disposed of, whether for cash, securities, notes, other property, assumption or repayment of indebtedness, or any combination thereof, including, without limitation, any acquisition, merger, consolidation, recapitalization, equity or asset purchase, joint venture, license, trust, joint marketing agreement, tender or exchange offer, leveraged buyout, capital contribution, infusion of capital, or other similar business combination or investment involving Client, resulting in (i) control by buyer of Client or its business, and (ii) active management by buyer of Client or its business, as such terms are defined under Section 15(b)(13) of the Securities Exchange Act of 1934, as amended (the “Exchange Act”), and applicable state securities laws.

2. Services

During the Term, Sells Group will:

- (a) assist in identifying and evaluating potential strategic and financial buyers;
- (b) provide valuation perspectives, including reference to precedent transactions, trading comparables and discounted cash flow analyses;
- (c) assist in preparing marketing materials based on information provided by Client, including a confidential information memorandum and/or management presentation;
- (d) develop and manage outreach to potential buyers and solicit proposals, including with respect to price, structure and key terms;
- (e) assist Client in its financial, strategic and operational evaluation of proposals;
- (f) facilitate and coordinate the due diligence process; and
- (g) advise on strategy and tactics for negotiations and, if requested by Client, participate in such negotiations alongside Client and its legal and accounting advisors.

Nothing herein constitutes legal, tax, or accounting advice.

Client acknowledges that Sells Group makes no representation or warranty that any Transaction will be completed, that the marketing process will generate offers, or that any particular price or terms will be achieved. The engagement of Sells Group does not constitute a commitment to underwrite, place, or purchase any securities, and no obligation on the part of Sells Group shall arise unless and until set forth in a separate written agreement.

3. Term; Exclusivity

For purposes of this Agreement, “Affiliate” means, with respect to any person or entity, any other person or entity that directly or indirectly controls, is controlled by, or is under common control with such person or entity (and “control” means the power to direct management or policies, whether through ownership of voting securities, by contract, or otherwise).

This Agreement shall commence on the Effective Date and continue for one (1) year (the “Initial Term”). It shall automatically renew for successive ninety (90) day periods (each, a “Renewal Period”) unless either Party provides at least thirty (30) days’ written notice of non-renewal. The Initial Term and any Renewal Period are collectively referred to as the “Term.”

This engagement is exclusive, and during the Term Client shall not engage any other financial advisor or investment bank in connection with a Transaction without Sells Group’s prior written consent.

If this Agreement is terminated or expires, Sells Group shall remain entitled to the Success Fee with respect to any Transaction consummated by Client (or any Affiliate of Client) during the eighteen (18) months following such termination or expiration (the “Tail Period”). For purposes of clarity, a Transaction shall be deemed consummated during the Tail Period if a definitive agreement is executed during such period and subsequently closes thereafter, even if the closing occurs after the end of the Tail Period.

Within five (5) business days following termination or expiration, Sells Group may deliver to Client a written list of persons or entities that Sells Group contacted, introduced, or with whom Sells Group had substantive discussions regarding a Transaction during the Term (the “Introduced Parties List”). Client shall notify Sells Group in writing of any objection to the Introduced Parties List within five (5) business days after receipt, failing which the Introduced Parties List will be deemed accepted for purposes of this Agreement. For the avoidance of doubt, Sells Group’s right to the Success Fee during the Tail Period applies to any Transaction consummated during the Tail Period, and the Introduced Parties List is intended solely to memorialize parties contacted during the Term and does not limit Sells Group’s rights under this Section.

4. Termination

Either Party may terminate this Agreement at any time upon written notice to the other. In the event of termination by Sells Group without Cause, the Retainer Fee shall be refunded to Client on a pro rata basis for the portion of the Initial Term then remaining. For purposes of the foregoing, “Cause” includes (i) Client’s breach of this Agreement, (ii) Client’s failure to timely provide requested information or cooperation necessary to perform the Services, or (iii) Client’s failure to timely pay amounts due, in each case that remains uncured for five (5) business days after written notice from Sells Group specifying such breach or failure, or (iv) Sells Group’s good faith determination that continuing performance would violate applicable law or professional obligations.

Following any termination or expiration of this Agreement, Sells Group shall remain entitled (i) to any fees accrued but unpaid prior to termination or expiration, together with reimbursement of any reasonable expenses incurred prior thereto, and (ii) to the Success Fee with respect to any Transaction consummated by Client (or any Affiliate of Client) during the Tail Period.

5. Fees

- (a) **Retainer Fee.** Client shall pay Sells Group a retainer fee of [fifty thousand dollars (\$50,000)] (the “Retainer Fee”), due upon execution of this Agreement. The Retainer Fee shall be credited against the Success Fee payable at closing of any Transaction. The Retainer Fee is earned upon receipt and non-refundable, except as expressly provided in Section 4. Any portion of the Retainer Fee refunded pursuant to Section 4 shall not be deemed earned.

(b) **Success Fee.** If Client consummates a Transaction during the Term or the Tail Period, Client shall pay Sells Group a cash success fee (the “Success Fee”) equal to [ten percent (10%)] of the Transaction Consideration (as defined below); provided, however, that in no event shall the Success Fee be less than two hundred thousand dollars (\$200,000). The Success Fee shall be due and payable by wire transfer at the closing of the Transaction (or, if not practicable, no later than one (1) business day following closing). If a Transaction involves staged or multiple closings, the portion of the Success Fee attributable to the Transaction Consideration paid or transferred at each closing shall be due and payable at such closing.

(c) **Transaction Consideration.** “Transaction Consideration” shall mean the total value of all consideration paid or payable, directly or indirectly, in connection with the Transaction, including without limitation:

- (i) all cash, securities, notes, or other property transferred;
- (ii) the amount of any indebtedness, guarantees, or other liabilities assumed, refinanced, retired, or extinguished, including, for the avoidance of doubt, the amount of any funded debt;
- (iii) the value of any deferred or contingent payments, earn-outs, escrows, milestone payments, or other post-closing payments, whether or not yet earned, funded, or released;
- (iv) the value of any employment, consulting, non-compete, lease, license, joint venture, or similar arrangements entered into in connection with the Transaction; and
- (v) any other consideration of any kind, whether paid at closing or thereafter, in each case without duplication.

For the avoidance of doubt, Transaction Consideration shall be calculated without reduction for (A) any Transaction expenses, advisory fees, or similar payments incurred by Client, or (B) any escrowed, deferred, or contingent amounts.

(d) **Contingent Payments.** Any Success Fee attributable to contingent or deferred consideration shall be payable based on such amounts when, as, and if actually received by Client, and Client shall pay the corresponding portion of the Success Fee within five (5) business days after Client’s receipt of such amounts; provided, however, that if such amounts are expressly stated in executed definitive agreements to be fixed, non-contingent, and payable (including, without limitation, escrowed cash, promissory notes, or other secured obligations), the corresponding portion of the Success Fee shall be payable at closing.

(e) **Fee Protection.** Client shall not, directly or indirectly, take any action or enter into any arrangement a principal purpose of which is to avoid, reduce, or delay any fee payable to Sells Group under this Agreement. Any transaction or series of transactions that would constitute a Transaction but for the manner in which it is structured shall be treated as a Transaction for purposes of this Agreement.

(f) **Late Payments; Collection Costs.** Any amount not paid when due under this Agreement shall accrue interest at 1.5% per month (or, if lower, the maximum rate permitted by applicable law) from the due date until paid. Client shall reimburse Sells Group for its reasonable costs of collection (including reasonable attorneys’ fees) incurred in collecting any past due amounts.

(g) **Transaction Documents; Reporting.** Client shall promptly provide Sells Group copies of the executed definitive agreement(s), closing statement(s), and a reasonable written summary of Transaction Consideration. For any escrow, earn-out, note, or other deferred or contingent consideration, Client shall provide reasonable periodic reporting sufficient to calculate amounts payable and shall notify Sells Group within five (5) business days of any receipt or final determination affecting such amounts. Upon reasonable notice, Client shall provide Sells Group

reasonable access to information and records relating to Transaction Consideration as necessary to verify amounts payable under this Agreement.

6. Non-Offset

No fee or other compensation payable to any other person or entity by Client (or any Affiliate of Client) in connection with any Transaction shall reduce, offset, or otherwise affect any fee payable to Sells Group under this Agreement.

7. Expenses

Client shall reimburse Sells Group for all reasonable out-of-pocket expenses incurred in connection with this engagement, whether or not any Transaction is consummated, including travel, data-room, printing, and other customary deal expenses, as well as the fees and expenses of outside counsel or other professional advisors retained by Sells Group in consultation with Client. All reimbursable amounts shall be invoiced to Client and paid within thirty (30) days following receipt of such invoice. All expense invoices shall be submitted within ninety (90) days following termination or expiration of this Agreement.

8. Client Obligations; Information; Reliance

Client shall furnish, or cause to be furnished, to Sells Group such current and historical financial and operational information, including financial estimates and projections, and such other information regarding Client's business (collectively, the "Information") as Sells Group may reasonably request. Client shall also provide Sells Group with reasonable access to Client's officers, directors, employees, and advisors, as Sells Group and Client reasonably agree is relevant to the Transaction.

Client represents and warrants that all Information provided will be accurate and complete in all material respects as of the date furnished, prepared in good faith based on reasonable assumptions, and reflective of the best currently available estimates and judgments. Client will promptly advise Sells Group of any material developments affecting the Information or Client's business.

Sells Group shall be entitled to rely upon such Information without independent verification and shall have no responsibility for the accuracy or completeness of, or the independent verification of, such Information, projections, or estimates. Client acknowledges that it will rely on its own legal, accounting, and tax advisors for matters outside the scope of Sells Group's engagement.

9. Client Representation

Client represents and warrants that it qualifies as an "eligible privately held company" within the meaning of Section 15(b)(13)(E)(iii) of the Exchange Act and applicable law. Without limitation of the foregoing, Client confirms that (i) it does not have any class of securities registered under Section 12 of the Exchange Act and is not subject to the reporting obligations of Section 15(d), and (ii) in its most recent fiscal year, it had either (x) EBITDA of less than \$25 million or (y) gross revenues of less than \$250 million. Client shall promptly notify Sells Group in writing if, during the Term, Client becomes aware of any fact, circumstance, or change that would cause any representation made in this Section to be inaccurate or incomplete in any material respect.

Sells Group's engagement is intended to be conducted in reliance on the exemption from broker-dealer registration under Section 15(b)(13) of the Exchange Act and applicable law. Sells Group is relying on the representations and information provided by Client in this Agreement and otherwise in connection with this engagement. Sells Group does not provide legal advice or a legal opinion regarding the applicability of any exemption or Client's or any other person's compliance with applicable securities laws.

If Sells Group determines in good faith that continued performance of any particular activity in the manner contemplated would require broker-dealer registration or otherwise violate applicable law, Sells

Group may cease such activity and the Parties will confer in good faith regarding a compliant path forward.

10. Independent Contractors; Regulatory Compliance

The Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or fiduciary relationship between the Parties.

Sells Group shall act solely as an “M&A broker” within the meaning of Section 15(b)(13) of the Exchange Act and applicable state securities laws. Without limiting the foregoing, Sells Group shall not (i) hold or transmit funds or securities of any party, (ii) provide or arrange financing for the Transaction, other than assisting Client in obtaining financing from unaffiliated third parties with written disclosure to Client, (iii) effect a public offering, (iv) bind either Party to any Transaction, or (v) participate in any Transaction involving a passive buyer that does not actively operate the acquired company post-closing.

Client agrees it will not request Sells Group to undertake, and Sells Group agrees it will not undertake, any activity that would require registration as a broker or dealer, other than as an “M&A broker.”

11. Indemnification

- (a) **By Client.** Client shall indemnify and hold harmless Sells Group and its Affiliates, and their respective directors, officers, employees, and agents, from and against any and all losses, claims, damages, liabilities, costs, and expenses (including reasonable attorneys’ fees) arising out of or relating to this engagement, except to the extent resulting from Sells Group’s fraud or willful misconduct. Client shall advance to Sells Group and its other indemnified persons reasonable attorneys’ fees and expenses as incurred in connection with any matter for which indemnification may be sought hereunder, subject to repayment if it is finally determined that such indemnified person is not entitled to indemnification under this Section.
- (b) **By Sells Group.** Sells Group shall indemnify and hold harmless Client and its Affiliates, and their respective directors, officers, employees, and agents, from and against any and all losses, claims, damages, liabilities, costs, and expenses (including reasonable attorneys’ fees) asserted by a third party to the extent resulting from Sells Group’s fraud or willful misconduct.
- (c) **Survival.** The provisions of this Section shall survive any termination or expiration of this Agreement.

12. Limitation of Liability

Except in the case of a Party’s fraud, gross negligence, or willful misconduct, neither Party shall be liable to the other for any indirect, consequential, special, or punitive damages arising out of or relating to this Agreement, whether in contract, tort, or otherwise, even if advised of the possibility of such damages. The aggregate liability of Sells Group under this Agreement shall not exceed the total fees actually paid by Client to Sells Group hereunder during the twelve (12) months immediately preceding the event giving rise to the claim.

13. Confidentiality; Non-Solicitation; Use of Advice

- (a) **Confidential Information.** Each Party agrees to maintain the confidentiality of non-public information disclosed by the other in connection with this Agreement (“Confidential Information”) and to use such information solely for purposes of this engagement. Confidential Information does not include information that is (i) publicly available, (ii) obtained from a third party not under confidentiality obligations, (iii) independently developed without reference to the disclosing Party’s information, or (iv) required to be disclosed pursuant to applicable law, regulation, or legal process, provided that, to the extent legally permissible, the Receiving Party provides the Disclosing Party with prompt written notice to allow the Disclosing Party to seek a protective order or other appropriate remedy. The obligations of this Section shall survive

termination or expiration of this Agreement for a period of two (2) years; provided that obligations with respect to trade secrets shall survive for so long as such information constitutes a trade secret under applicable law. Notwithstanding the foregoing, following the public announcement of a Transaction, Sells Group may include Client's name, a general description of the Transaction, and Sells Group's role in its marketing materials, credentials presentations, tombstone advertisements, and website without Client's prior consent, provided that Sells Group shall not disclose any confidential financial terms of this Agreement or the Transaction. Upon termination or expiration of this Agreement, each Party shall, at the Disclosing Party's request, promptly return or destroy all Confidential Information of the other Party in its possession (including copies thereof), except that each Party may retain copies as required by applicable law, regulation, or professional standards, and such retained copies shall remain subject to the confidentiality obligations of this Section.

- (b) **Non-Solicitation.** During the Term and for twelve (12) months thereafter, neither Party shall, directly or indirectly, solicit for employment or hire any employee of the other Party; provided, however, that this restriction shall not apply to general solicitations not directed specifically at such employees or to individuals who independently seek employment.
- (c) **Use of Advice.** Any written or oral advice, analyses, or other work product provided by Sells Group is solely for the confidential internal use and benefit of Client and its owners, managers, and executive management (or equivalent governing body) in connection with its evaluation of a Transaction. Client may disclose such advice to Client's and its Affiliates' attorneys, accountants, tax advisors, and other professional advisors who are bound by confidentiality obligations, but may not disclose, summarize, or publicly refer to such advice (or Sells Group's involvement) to any other person or entity without Sells Group's prior written consent (not to be unreasonably withheld).
- (d) **No Third-Party Reliance; Distribution of Materials.** All materials, analyses, presentations, summaries, models, and other work product prepared by Sells Group in connection with this engagement (collectively, "Materials") are prepared solely for the use and benefit of Client. Client may provide the Materials to prospective purchasers and their representatives in the ordinary course of the Transaction process only if such recipients are bound by confidentiality obligations and the Materials are furnished subject to a written non-reliance understanding, which may be (i) included in the applicable NDA, (ii) set forth in a legend on the Materials, or (iii) contained in a separate non-reliance letter (an "NRL") executed by such recipient, in each case in form and substance reasonably acceptable to Sells Group. Sells Group makes no representation or warranty to, and shall have no duty or liability to, any third party with respect to the Materials, and no third party may rely on the Materials for any purpose, and no third party is intended to be a third-party beneficiary of this Agreement. Any distribution of Materials in violation of this Section shall be at Client's sole risk. Client shall not publicly disclose or reference Sells Group or the Materials, or use Sells Group's name or logo in any public communication, without Sells Group's prior written consent.
- (e) **Equitable Relief.** Each Party acknowledges that a breach of this Section would cause irreparable harm for which monetary damages would be inadequate and agrees that the non-breaching Party shall be entitled to seek injunctive relief, in addition to any other remedies available at law or in equity.

14. Governing Law; Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without giving effect to any conflict of laws provisions thereof. The Parties irrevocably submit to the exclusive jurisdiction of the state and federal courts located in Harris County, Texas, for any dispute

arising out of or relating to this Agreement, and waive any objection to venue. EACH PARTY KNOWINGLY AND VOLUNTARILY WAIVES ANY RIGHT TO A TRIAL BY JURY.

In any action or proceeding to enforce any provision of this Agreement, the prevailing Party shall be entitled to recover its reasonable attorneys' fees and costs from the non-prevailing Party.

15. Miscellaneous

- (a) **Assignment.** Client may not assign this Agreement or any of its rights or obligations hereunder without Sells Group's prior written consent. Any purported assignment by Client in violation of this Section shall be void. For purposes of this Section, an assignment includes any transfer by operation of law, merger, consolidation, or other change of control of Client. Notwithstanding the foregoing, Sells Group may assign this Agreement (i) to any Affiliate of Sells Group, or (ii) in connection with a merger, consolidation, reorganization, or sale of substantially all of Sells Group's business or assets, in each case without Client's consent. This Agreement shall be binding upon and inure to the benefit of the Parties and their respective permitted successors and assigns. Client shall remain responsible for all obligations under this Agreement regardless of any assignment or transfer.
- (b) **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior and contemporaneous understandings, agreements, negotiations, and communications, whether written or oral.
- (c) **Amendments.** No amendment or modification of this Agreement shall be valid unless in writing and signed by both Parties.
- (d) **Waiver.** No waiver by either Party shall be effective unless in writing and signed by such Party, and no waiver shall operate as a waiver of any other or subsequent breach.
- (e) **Severability.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.
- (f) **Counterparts; Electronic Signatures.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and signatures delivered electronically (including by PDF or other electronic transmission) shall be deemed valid and binding.
- (g) **Survival.** The provisions under the following sections (and any payment obligations thereunder), including without limitation, Fees (including Transaction Consideration and Contingent Payments), Termination, Non-Offset, Expenses, Client Obligations; Information; Reliance, Client Representation, Independent Contractors; Regulatory Compliance, Indemnification, Limitation of Liability, Confidentiality; Non-Solicitation; Use of Advice, and Governing Law; Dispute Resolution shall survive any termination or expiration of this Agreement.
- (h) **Third-Party Beneficiaries.** This Agreement is for the sole benefit of the Parties and their permitted successors and assigns, and there are no third-party beneficiaries.
- (i) **Headings.** Headings are for convenience only and shall not affect the meaning or interpretation of this Agreement.
- (j) **Third-Party Confidentiality.** Sells Group shall maintain the confidentiality of proprietary information of its other clients (and the former employers of its personnel) and shall have no obligation to disclose such information to Client.
- (k) **Conflicts.** Client acknowledges that Sells Group and its Affiliates are in the business of providing financial advisory services and may represent other clients in similar industries or in connection with similar transactions. Nothing in this Agreement shall limit Sells Group's ability to provide such services, subject to the confidentiality obligations set forth herein.

- (1) Notices. All notices shall be in writing and delivered by email or certified mail to the addresses below (or as updated by written notice). Notices sent by certified mail shall be effective upon receipt (or refusal of delivery). Notices sent by email shall be effective when transmitted to the recipient's email address below (as evidenced by the sender's email system), provided that no "undeliverable," bounce-back, or similar notice of failed delivery is received by the sender.

If to Sells Group:

Sells Group Investments, LLC
Attn: Tyler Sells, Chief Executive Officer
5100 W JB Hunt Dr, STE 830
Rogers, AR 72758
Email: tyler@sellsgroupadvisors.com

If to Client:

[CLIENT LEGAL NAME]
Attn: [NAME, TITLE]
[STREET ADDRESS]
[CITY, STATE, ZIP]
Email: [CLIENT EMAIL]

[The remainder of this page is intentionally left blank. Signature page follows.]

[CLIENT LEGAL NAME]

By: _____

Name: _____

Title: _____

Email: _____

Address: _____

SELLS GROUP INVESTMENTS, LLC

By: _____

Name: Tyler Sells

Title: Chief Executive Officer

Email: tyler@sellsgroupadvisors.com

Address: 5100 W JB Hunt Dr, STE 830, Rogers, AR 72758